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***Dignitatis Humanae* as an Encounter Between Two “Towering Theologians”: John Courtney Murray, S.J., and Yves Congar, O.P.**

Agnes de Dreuzy

In an editorial for the March 2004 issue of *Theological Studies*, Michael A. Fahey, S.J., editor-in-chief, invited “the worldwide Catholic theological community to commemorate the one-hundredth anniversary of the birth of four towering theologians all of whom were born in the year 1904: Yves Congar (d. 1995), Karl Rahner (d. 1984), Bernard Lonergan (d. 1984) and John Courtney Murray (d. 1967),” suggesting that “it would be interesting to know the degree of familiarity each of the four theologians had for the writings of the others.”¹ Recognizing the fortieth anniversary of the promulgation of the Declaration on Religious Freedom² is a fitting opportunity to further explore the “degree of familiarity” between two of the document’s architects, John Courtney Murray and Yves Congar. What did these two “towering theologians” think about each other’s writings on the topic of religious freedom? How did they collaborate in the drafting of *Dignitatis Humanae* and how did the nature of this collaboration affect the final conciliar document?

The French Dominican Yves Congar and his American colleague, the Jesuit John Courtney Murray, met for the first time in 1950 in Grottaferrata, Italy, at a conference of Catholic ecumenists. Shortly after this meeting, they were both silenced by Rome.³ Almost fifteen years would transpire before their rehabilitation and their next encounter. Congar, hailed as one of the greatest ecclesiologists and Murray, perhaps the finest twentieth-century theologian from the United States, converged on Rome for the

1. Michael A. Fahey, S.J., “From the Editor’s Desk,” *Theological Studies* 65, no. 1 (March 2004): 1–2.

2. The Declaration on Religious Freedom, *Dignitatis Humanae*, was promulgated by Pope Paul VI on 7 December 1965.

3. See Yves Congar, *Journal d’un Théologien (1946–1956)* (Paris: Le Cerf, 2000). For Murray, see Joseph A. Komonchak, “The Silencing of John Courtney Murray,” *Cristianesimo nella Storia*, ed. A. Melloni (Bologna: Il Mulino, 1996), 657–702.

Second Vatican Council in their capacity as *periti*.⁴ Their paths crossed on the road leading to the formulation of the Declaration on Religious Freedom.

On the hotly debated question of religious liberty and the redaction of *Dignitatis Humanae*, Murray's influence was unsurpassed. The literature clearly posits religious freedom as *the* American issue, the declaration as a victory for the American position, and the source of Murray's vindication in particular. The American theologian is seen as the main architect of *Dignitatis Humanae*. According to this same literature, Congar's participation was minimal if it is not dismissed entirely. In the French periodical, *Informations Catholiques Internationales*, Congar provided daily reflections and thoughtful analysis of the debates during the conciliar meetings.⁵ However, it is in his recently published diary, *Mon Journal du Concile*,⁶ that Congar's colorful personality emerges to reveal a more personalized critique of the long birth of *Dignitatis Humanae* and a detailed account that clarifies the extent of his participation in drafting the declaration. Although he shared Murray's general vision of the role of the Church in the modern world, Congar emphasized his ecclesiological differences with Murray, differences tied to two differing schools of thought defined by two distinctive historical contexts.

Rome's major concern in the nineteenth century was continental Europe's entanglement with liberalism.⁷ With the encyclical *Mirari Vos*⁸ that condemned Félicité de Lamennais' Liberal Catholicism, Pope Gregory XVI reacted against liberal views such as those that, in the name of freedom, called for the separation of church and state and the replacement of the confessional state. The pope argued that the idea of separation of church and state encouraged religious indifferentism and a naturalistic conception of man. With the promulgation of the encyclical *Quanta Cura* in 1864 and the *Syllabus of Errors* attached to it, Pope Pius IX reasserted the Catholic ideal of the confessional state. It was an answer to the proclivity of European governments, especially France, to impose separation of church and state.

On the other side of the Atlantic, in the United States, the *Syllabus of Errors* and the decree concerning papal infallibility, expounded in the First Vatican Council's *Pastor*

4. Invited by Cardinal Francis Spellman, Murray's official role in the Council's debates on religious freedom began with his role as *peritus* on April 4, 1963. Congar was appointed consultant to the preparatory theological commission on July 20, 1960 and later personal advisor to Bishop Jean-Julien Weber of Strasbourg, France, on September 28, 1962.

5. See also Yves Congar and Jérôme Hamer, ed. *Vatican II - La Liberté Religieuse, Déclaration "Dignitatis Humanae Personae" Unam Sanctam* 60 (Paris: Le Cerf, 1967); Yves Congar, "La Déclaration sur la Liberté Religieuse" *Etudes et Documents* 5 (June 14, 1965).

6. Yves Congar, *Mon Journal du Concile*, 2 volumes (Paris: Le Cerf, 2002). All translations into English from the journal are that of this author.

7. Roger Aubert, "Liberalism and the Church in the Nineteenth Century" in *Tolerance and the Catholic, a Symposium* (New York: Sheed and Ward, 1955), 47.

8. Pope Gregory XVI promulgated the encyclical *Mirari Vos* ("On Liberalism and Religious Indifferentism"), August 15, 1832.

Aeternus,⁹ created an uneasiness shared by Catholics and Protestants alike in a country in which separation of church and state had been favorably experienced. A few decades later, an already prevailing anti-Catholic sentiment was exacerbated by the promulgation of the encyclical *Longinqua Oceani*,¹⁰ followed by the condemnation of “Americanism” through the apostolic letter, *Testem Benevolentiae*¹¹ in 1899, both of which were interpreted as an unjustifiable meddling of Rome in the affairs of the United States. Opponents justified their antagonism with Catholics relying on the first article of the Bill of Rights, the key statement about religious liberty, which stated, “Congress shall make no law respecting an establishment of religion, or prohibiting the free exercise thereof . . .”

In the twentieth century, the problem of religious liberty had become more intricate. Murray in his comments on European writings published in the late 1940s noted: “The problem then [in the nineteenth century] was relatively simple . . . its framework was the Continental Nation-State. The enemy was Liberalism . . . the basic categories of argument were ‘thesis’ and ‘hypothesis.’”¹² This state of affairs was challenged in the twentieth century by the universal and steady rise of secularism and the growth of the atheistic totalitarian state. The universality of the issue encouraged intellectual interactions between European and American thinkers, especially after World War II.

Well-known European theologians and philosophers who had immigrated to the United States during the hostilities influenced the American thinkers and participated actively in recasting the question of religious freedom. In particular, Christian philosophers Jacques Maritain and Etienne Gilson had a profound influence on the American intellectual scene. Murray’s thoughts, which until then had been shaped more by “the American democratic experience than any other factor,”¹³ were strongly influenced by Maritain’s neo-Thomism.¹⁴ The late 1940s also saw a renewed European interest in the question of religious freedom; annual conferences led by theologians revisited the topic. Articles translated into English were published on the other side of the Atlantic.¹⁵ “The first writing of Murray that seems to have attracted the interest of other European Catholic thinkers was his essay *Contemporary Orientations of Catholic*

9. See Chapter IV of *Pastor Aeternus* on the infallible teaching authority of the Roman Pontiff.

10. The encyclical *Longinqua Oceani* (On Catholicity in the United States) was promulgated by Pope Leo XIII on January 6, 1895. Leo XIII, criticizing the state of separation of Church and State in America, cautioned that “it would be very erroneous to draw the conclusion that in America is to be sought the type of the most desirable status of the Church, or that it would be universally lawful or expedient for State and Church to be, as in America, dissevered and divorced.”

11. On January 22, 1899, Pope Leo XIII promulgated the apostolic letter, *Testem Benevolentiae*, criticizing Americanism.

12. John Courtney Murray, “Current Theology on Religious Freedom,” *Theological Studies* 10 (September 1949): 420–21.

13. Donald E. Pelotte, *John Courtney Murray: Theologian in Conflict* (New York: Paulist Press, 1976), 2.

14. *Ibid.*, 5.

15. The New York publisher Sheed and Ward offered translations of major European studies.

Thought on Church and State in the Light of History."¹⁶ The uniqueness of the Church in America's condition fascinated the Europeans.

It is this mutual interest in the church and state controversy that brought to light the ecclesiological differences between two schools of thought, influenced by different historical circumstances and enriched by a clearer understanding of the universality of the issue. Both Murray and Congar were able representatives of these differing approaches. Like other Catholic thinkers in Europe and the United States, they started to reassess the relations between church and state.¹⁷ To respond to the new situation, they developed the notion of human beings as free citizens united in their respect for the common good in the name of human dignity. To this effect, Congar presented an essay, "The Theological Conditions of Any Pluralism,"¹⁸ which endeavored "to bring out from the point of view of Catholic theology, the conditions or principles that must govern any co-operation between men of different beliefs . . ." ¹⁹ He suggested that "a more open attitude [of the Church] which [should be] nevertheless free from any taint of the wrong sort of liberalism"²⁰ would present a Church that, "as a magisterium, exists in a state of pure 'thesis'," but "in her members, in the life she leads in the world, is always in a state of 'hypothesis,'" ²¹ a state in which the idea of pluralism based on Christian charity and human friendship can blossom. This form of pluralism assumed respect of the dignity of the human person. Congar drew a line between the sacred sphere in which communion with non-Catholics would not be possible and a larger sphere that went beyond the supernatural that "embraces nature itself." This field belongs to all, "to the extent that they . . . respect this nature." "There is a Church intolerance that is not to be questioned," asserted Congar, "the one coming from the magisterium of the Church that condemns error, but the Church can acknowledge civil toleration."²²

While Congar was still thinking in terms of thesis/hypothesis emphasizing the freedom of the act of faith, Murray, whose position had matured since his first writings in 1945, now rejected this traditional principle. He was developing a theory of religious freedom stressing the difference between the democratic state that had no role to play in religious affairs, except for maintaining public peace, and society itself representing the people. Because he was always dealing with a pragmatic situation, Murray focused on the juridical and political effects of religious freedom instead of its theological grounding, favored by Congar. In a 1950 memorandum addressed to Msgr. Giovanni

16. John Courtney Murray, "Contemporary Orientations of Catholic Thought on Church and State in the Light of History," *Theological Studies* 10 (June 1949): 177–234. Cited in Joseph A. Komonchak, "European Interest in Murray's Views," unpublished papers, JCM3B, 28.

17. The situation of the Spanish confessional state was at the origin of the new questioning.

18. Yves Congar, "The Theological Conditions of Any Pluralism," in *Tolerance and the Catholic, a Symposium* (New York: Sheed and Ward, 1955), 166–99.

19. *Ibid.*, 166.

20. *Ibid.*, 186.

21. *Ibid.*

22. *Ibid.*, 197.

Battista Montini, then working in the Vatican Secretariat of State and the future Pope Paul VI, Murray regretted that the Church "does not fully and sincerely affirm the human and political values of a democratically organized political society." Instead, he argued, "the Church's traditional doctrine can be vitally adapted to the legitimate political exigencies of a democratically organized state."²³ Murray envisioned a reconciliation of the Catholic doctrine with the American political tradition.

It is in this context that the issue of religious freedom was debated during the Second Vatican Council. Thirty-six bishops from the United States asked that the issue of church and state be placed on the agenda. The more influential ones, following Murray's lead, proposed to reconsider the classic doctrine of the Church in the light of the modern world. Cardinal Francis Spellman, archbishop of New York, appointed Murray as conciliar *peritus* to advise the American episcopate on this sensitive issue. Though Murray was "disinvited"²⁴ from the first session of the Council during which religious freedom was analyzed under the thesis/hypothesis view, as a matter of convenience, Murray's participation commenced in 1963. It was within the Secretariat for the Promotion of Christian Unity, a committee assembled by Pope John XXIII in 1960 during the preparatory stage of the Council, that Murray's position favoring the socio-political and juridical dimension was framed against that of the French bishops and their chief theologian, Congar.

The history of the debates is well known. It took more than twenty successive drafts for an acceptable compromise to be reached. It is customary to cite Msgr. Pietro Pavan, the main author of *Pacem in Terris*,²⁵ along with Msgr. Jozef De Smedt and Murray, as the principal actors in the debate. Congar's more limited, yet important role, is sometimes forgotten. The Dominican priest was aware that his frailty prevented him from assuming a larger role. Lamenting his shyness and his lack of initiative, combined with a debilitating pain due to a neurological disease of the spine, Congar had great difficulty working. "Personally, I am still not free from the apprehension of a man under suspicion, sanction, judgment and discrimination,"²⁶ he noted in his journal. The extent of his participation in the drafting of *Dignitatis Humanae* is detailed through commentaries in his diary. In a useful note for understanding Congar's role in the genesis of the conciliar texts and of *Dignitatis Humanae* in particular, he stated: "*De Libertate Religiosa*: Cooperation on the entire text, in particular the theological part and the *Proemium* that I penned myself."²⁷

23. "The Crisis in Church-State Relationships in the U.S.A.," Clare Booth Luce Papers, box 703, folder 14, Library of Congress, Washington, D.C. I am indebted to Joseph A. Komonchak for this reference.

24. Murray's invitation to the first session was withdrawn at the request of the Apostolic Delegate to the United States Archbishop Egidio Cardinal Vagnozzi, who voted against the Declaration of Religious Liberty.

25. Pope John XXIII promulgated the encyclical *Pacem in Terris* on April 11, 1963. John XXIII spoke of the signs of the times, which show that men and women have become increasingly conscious of their dignity as human beings.

26. Congar, *Mon Journal du Concile*, Vol. 2, (March 13, 1964) 56.

27. *Ibid.*, (December 7, 1965), 511.

A first draft was presented late in the second session by the Secretariat for the Promotion of Christian Unity as Chapter V of the Decree on Ecumenism, *De Oecumenismo*. It was handed to the council fathers on November 19, 1963 under the title *De Libertate Religiosa*. Neither Murray nor Congar were involved in this draft. Endorsing the position of Bishop Juan Hervás y Benet of Doras, Spain, Congar remarked on his reticence concerning Chapter V. "The question of religious freedom" he asserted, "should be in the chapter of Schema XVII which deals with the rights of the person. In a text on ecumenism, the chapter on liberty as it is would favor a *rousseauistic* idea (sole subjective norms) and proselytism." In capital letters, Congar noted his strong affirmation: "I FIND THIS CORRECT."²⁸

A new version, the *Textus Prior*, written by Msgr. Pavan, Father De Riedmatten and Murray, was handled to the Council Fathers on April 2, 1964 with a new *relatio*. The central idea was that every human has a dignity that derives from his divine vocation.²⁹ Congar favored this second draft, calling it a "very homogenous, coherent" text. "It is grounded in the notion of human rights limited only by the common good."³⁰ On September 23, 1964, after the presentation of the new *relatio* by De Smedt, Congar entered in his diary a triumphant line: "Very good . . . quality and positive spirit of the debate on religious freedom. Lacordaire³¹ has won, 100 years after his death."³² As for Murray, he acknowledged that the draft followed a line of argument characteristic of French-speaking theologians. "The argument began, not in the order of historical fact, but in the order of universal truth . . . Religious freedom was conceived to be formally and in the first instance an ethical and theological notion. The effort then was made to conclude, by inference, to the juridical notion of religious freedom."³³ But, according to Murray the argumentation was not convincing. "It is not obvious that the inference from freedom of conscience to the free exercise of religion as a human right is valid."³⁴ Murray complained that the second text gave too much room to theological reasoning. He agreed with Pavan that "the political-legal aspects are coordinate with, not subordinate to, the theological-ethical aspects."³⁵

28. Congar wrote, "*JE TROUVE CELA JUSTE*" (emphasis in original). See *Ibid.*, (November 21, 1963), 558.

29. Herbert Vorgrimler, ed., *Commentary on the Documents of Vatican II*, Volume IV (New York: Herder and Herder, 1969), 52.

30. Congar, *Mon Journal du Concile*, Volume II, 43.

31. Jean-Baptiste-Henri-Dominique Lacordaire was the most famous pulpit orator of nineteenth-century France. A Dominican, he embraced Liberal Catholicism and became its main clerical representative after Lamennais left the Church. He envisioned a new alliance between Church and society. In the genuinely Catholic world envisioned by him, order and liberty would be the foundation of a stable society where the Church would be free to fulfill its spiritual mission and society would assume its social role.

32. *Ibid.*, 153, 156.

33. John Courtney Murray, "The Matter of Religious Freedom," *America* 112 (January 9, 1965): 42.

34. *Ibid.*

35. Pelotte, *John Courtney Murray: Theologian in Conflict*, 90. On this aspect of the debate, see Christopher J. Kauffman's interpretation of the third draft as a shift from *mystique* to *politique*. Kauffman, "American Reactions to *Dignitatis Humanae*" in *Religious Liberty: Paul VI and Dignitatis Humanae*, (Brescia: Pubblicazioni dell'Istituto Paolo VI, 1995), 77.

After four-hundred suggestions for alterations to the text were collected, a new schema emerged from the redrafting undertaken by Pavan, De Smedt, Murray, Johannes Willebrands, and Jean Jérôme Hamer. The American's contribution, as recorder, was decisive. Variances in methodology and argumentation crystallized around this third draft. The *Textus Emendatus* favored a line of argument more common among Anglo-Saxon and Italian theologians. It was presented to the council fathers with a *relatio* by De Smedt on November 17, 1964. Congar echoed many of the criticisms of the council participants. "There is almost nothing left from the previous text" he wrote. "The BIBLICAL part is mediocre . . . I believe this endeavor lacks substance. The writers (Msgr. Pavan and John Courtney Murray in particular) do not realize the difficulties they are raising with their text."³⁶

The fourth part, of special interest to Congar, focused on the "Doctrine on Religious Freedom in the Context of Revelation." This section, presented at the end of the declaration, had many implications not supported by Congar. It demonstrated a clear intention to present the declaration as essentially based on a philosophical reasoning and turned towards human experience. It was in response to those who, since the second draft, had favored a juridical declaration in harmony with the United Nations Universal Declaration on Human rights.³⁷ In the previous draft, the basis of religious freedom was found in the divine vocation of humanity and only indirectly in the dignity of the human person. In the new text, only this dignity served as a basis for freedom. The section, *Doctrina Evangelica*, was a timid response to Archbishop Marcel Dubois of Besançon, France, who had asked, like Congar, for a firmer scriptural grounding.

Another hotly debated issue in the *Textus Emendatus* was the *quaestio historica*. It was strongly opposed by the minority led by Msgr. Marcel Lefebvre, but also raised questions among the majority itself. During the debate, Gabriel-Marie Garrone, Archbishop of Toulouse, France, asked that the crucial issue of the historical development of religious freedom be scrutinized. The difficulty was in acknowledging the transition from toleration to religious freedom without contradicting modern papal teaching. Following Congar's advice, Garrone recommended adding an "historical *proemium* in which the Church would explain its evolution. Without this kind of statement", said Garrone, "the Church would be accused of opportunism or lack of sincerity."³⁸ To answer this request, a *Quaestio Historica* was introduced as number two in the schema. The *Quaestio* "argued that the condemnations of the Church aimed exclusively at an *anti-religious* liberalism though the liberalism of people like Lamennais, a Christian liberalism, was also condemned . . . The *Proemium* appeared as a global justification: it approved the past and mentioned no regrets for behaviors not consistent with the spirit of the Gospel."³⁹

36. Congar, *Mon Journal du Concile*, Volume II, 202.

37. The Universal Declaration on Human Rights was promulgated on December 10, 1948.

38. Congar and Hamer, ed., *Vatican II—La Liberté Religieuse, Déclaration "Dignitatis Humanae Personae,"* 86.

39. *Ibid.*

Congar was disappointed. Although he was not expecting an apology, he would have welcomed an acknowledgement and some remorse expressed about the errors of history. Back in 1962, Congar had noted in his diary: "I can see the impact of a time when the Church was 'lordly,'⁴⁰ when she detained a temporal power Poor Pius IX who never understood the '*moment de l'Histoire*,' put French Catholicism in a sterile attitude of opposition, of conservatism . . . A catastrophic man who did not know what the ECCLESIA or the Tradition was: he oriented the Church to be always OF the world and not yet FOR the world which, however, needed her."⁴¹

According to Congar, the *Textus Emendatus* had not placed the notion of religious freedom in its proper historical perspective. It should have better demonstrated that, though the text *materially* opposed the *Syllabus of Errors* on many points, it was consistent with the position of most of the popes since Leo XIII. The draft should have insisted, "the popes had more and more resolutely pressed the claim of the dignity of the human person against regimes and other means of constraint."⁴² In this historical context, in order to avoid criticism of indifferentism or subjectivism, it must state that the exemption of coercion did not suppress in any way the moral obligation to search for the truth. It is only in the final text that "Murray demonstrated that from Leo XIII via Pius XI and above all Pius XII to the John XXIII of *Pacem in Terris*, the popes have more and more resolutely pressed the claim of the dignity of the human person against regimes and other means of constraint in such a way that *Dignitatis Humanae* follows in the wake of this succession and represents the crowning point of a continuous movement."⁴³ In the *Textus Emendatus*, the demonstration did not go far enough for Congar. The value of what he perceived as a genuine historical questioning was synthesized in Jean Guitton's article in the French daily newspaper, *Le Figaro*: "Newman was converted to Catholicism in 1845 and the reason he gave for his conversion was this: the Church, he said, must unite truth and life in herself. She must therefore change—rejuvenate herself, renew herself in order to maintain through change her fundamental identity."⁴⁴

To demonstrate without ambiguity the continuity through evolution of her fundamental identity, and to answer to the minority's criticism of doctrinal change, Congar would have endorsed a text that went further into history. He argued that the objections brought by the minority rested on "Leo XIII's use of an Augustinian and medieval theology that linked *ius* and *iustitia*."⁴⁵ Breaking with this form of Augustinianism, the

40. Congar used the term "*seigneurisante*" ("lordly") to describe a time in which the Church cultivated relations with the nobility.

41. See *Mon Journal du Concile*, Volume II, (October 11, 1962) 109.

42. *Ibid.*

43. Yves Congar, *Challenge to the Church, The Case of Archbishop Lefebvre* (Huntington, Ind.: Our Sunday Visitor, Inc., 1976), 44.

44. Congar, *Challenge to the Church*, 83. Article from Jean Guitton in "*Le Figaro*" (August 28, 1976).

45. Congar and Hamer, ed., *Vatican II - La Liberté Religieuse, Déclaration "Dignitatis Humanae Personae,"* 12.

declaration followed another line of thought, encompassed in Thomas Aquinas’ vision of a natural order independent of faith.⁴⁶ Congar argued that “[the declaration] established a natural and absolute right of the human person not to be constraint in religious matters.”⁴⁷ There was nothing subjective in this approach. He acknowledged the reality of an evolution but confined it to the realm of the objective order itself. Eventually both Murray and Congar had to admit that there was a gap between the declaration and Catholic tradition in need of explanation. However, while Murray left it to theologians to decide, Congar acknowledged that the text was articulating something different from previous papal statements, such as the *Syllabus of Errors*.

While the third session was crucial to Murray’s participation, the third intercession⁴⁸ was a turning point in Congar’s collaboration in the formulation of *Dignitatis Humanae*. A group of experts (Pavan, Murray, Hamer, Congar, Antoine Hubert Thijsen, and Johannes Feiner) led by Msgr. Willebrands convened in Rome from February 18–23, 1965, to draft a new text that would be submitted to the plenary meeting of the Secretariat.⁴⁹ Congar was chosen to lead a group of biblical specialists⁵⁰ in charge of redrafting the scriptural part of the declaration. He promoted the vision that the Council had a fundamental duty to express the Church’s view through “a voice that would proceed from Revelation,”⁵¹ which the Church must preserve and develop in its tradition. Hence, he offered “to develop the biblical idea, after a brief *Proemium*.”⁵² The main idea was to recognize the existence of a juridical structure as a source for the progressive education of man to freedom. The Church had to acknowledge the existence of this structure and through its own plane of “*immunitas a coactione*”⁵³ responds to the biblical and Christian request.⁵⁴ The civil right to religious freedom was understood to be rooted in Revelation because the right was grounded in the person’s dignity. “From now on THIS IS what we are talking about in this text,”⁵⁵ concluded Congar. Consequently, he defended an order that would put “immediately after

46. See Joseph A. Komonchak, “The Redaction and Reception of *Gaudium et Spes*: Tensions within the Majority at Vatican II,” *The Catholic University of America*, 21. The original article has been published in Italian: “Le valutazioni sulla *Gaudium et spes*: Chenu, Dossetti, Ratzinger,” in *Volti di fine Concilio: Studi di storia e teologia sulla conclusione del Vaticano II*, Joseph Doré and Alberto Melloni, eds. (Bologna: Il Mulino, 2000), 115–53. An abridged version was published as “Augustine, Aquinas or the Gospel *sine glossa*: Divisions over *Gaudium et spes*” in *Unfinished Journey: The Church 40 Years after Vatican II. Essays for John Wilkins*, ed. Austen Ivereigh (New York: Continuum, 2003), 102–18.

47. Congar and Hamer, eds., *Vatican II - La Liberté Religieuse, Déclaration “Dignitatis Humanae Personae,”* 12.

48. 21 November 1964 – 14 September 1965.

49. Yves Congar, “La Déclaration sur la Liberté Religieuse – Révision du Texte pendant l’Intersession,” *Etudes et Documents* 5 (14 Juin 1965):1.

50. Among the specialists were Stanislas Lyonnet, S.J., Gerald A. McCool, S.J., of the *Pontifical Biblical Institute* and later Pierre Benoit from *l’Ecole Biblique*.

51. Congar, *Mon Journal du Concile*, Volume II (February 19, 1965), 329.

52. *Ibid.*, 329–30.

53. Meaning here, “immunity from all constraint.”

54. *Ibid.*

55. *Ibid.*

the *Declaratio* (3) not the anthropological and rational argumentation but the Scriptural grounding of the text.”⁵⁶ Hamer, Murray, and Willebrands did not favor this idea, while Feiner and Thijssen supported it. To justify his position further, Congar detailed his vision for the declaration’s future. “Our declaration,” he stated, “will have unknown consequences for two or three centuries. I am convinced that it will bear good fruit . . . but we should not cherish too many illusions. It will be used to promote and justify indifferentism and demonstrate that ALL rules of morality can be found in a sincere conscience and in subjective intention. We do not create a new situation. It already exists but we need to acknowledge it and show our pastoral responsibility in fighting against false presuppositions.”⁵⁷ Many criticisms of the text arose, some coming indirectly from the pope, through Augustin Cardinal Bea’s intervention. The *Proemium* drafted by Congar was attacked based on the assumption that it would raise many new questions and difficulties. Congar, receptive to Bea’s criticism, offered to suppress it.⁵⁸ “I realized,” he wrote, “that VERY FEW people understand the link between the *Proemium* and the rest of the declaration. I finally concluded that everything would be more powerful if we entered directly the plane of JURIDICAL liberty. WE WOULD HAVE MUCH MORE AGREEMENT, close to unanimity.”⁵⁹ Although Murray, in a spirit of conciliation, had supported Congar’s *Proemium* and the intention behind the addition, it is clear that its suppression brought the draft closer to Murrays’s own juridical vision. Congar’s approach was shared by many French theologians and bishops who favored the ethical-theological reasoning. They were eventually convinced to endorse a more juridical approach after the interventions of Congar and Jean Sauvage, bishop of Annecy, France. Thus when the *Textus Re-Emendatus* was discussed at the Council on September 15, 1965, it received the full support of the French episcopate.

Nevertheless, the final text presented to the council participants departed from the *Textus Re-Emendatus*, starting with a new *Proemium* entirely written by Congar, drafted while Murray was in the hospital with a collapsed lung. During Murray’s absence, Congar had been able to convince the commission “that a rather ample *Proemium* was necessary to introduce the ideal position of the Church, its evangelization duty, and the duties of men towards Revelation. In that way, the subsequent argument for religious liberty as conceived for humankind would be more easily embraced.”⁶⁰ The final preamble explained that God had revealed the way in which humanity’s salvation can be realized in Jesus Christ. Such a way exists in the only true religion, which *subsists* in the Catholic Church. Men have a duty to seek the truth, a truth which binds conscience. The last part of the *Proemium* stated, “the Council in-

56. Ibid., 337.

57. Congar, *Mon Journal du Concile*, Volume II (May 5, 1965), 370.

58. “If we don’t do it, the Pope will do it himself,” wrote Congar in his *Journal*.

59. Congar, *Mon Journal du Concile*, Volume II (May 10, 1965), 377.

60. Ibid. (September 28, 1965), 411.

tends to develop the doctrine of recent popes on the inviolable rights of the human person and the constitutional order of society." This passage was added in order to assuage the fear of some council fathers who feared the charge of indifferentism and a break with doctrinal tradition. The reactions to the *Proemium* were diverse. While some fathers were very concerned, arguing that the spirit of the declaration had been obliterated, others, among them non-Catholic Christians, were satisfied with the attempt to avoid the temptation of indifferentism.⁶¹ Congar noted that Murray regretted "that they had taken out, at the beginning of number 1, the general announcement of the theme of religious liberty supported by *Pacem in Terris*. He was absent when we (myself!) rewrote this article."⁶²

Congar, though satisfied by the Council's approval of the text of *Dignitatis Humanae* with only seventy dissenting votes, harbored some concerns about the document. In one of the last entries of his journal, he underlined the thrust of his continued concern. "Since the beginning of my participation to the *De Libertate*," he wrote, "I was thinking that if I were a bishop, I would have some concern. Whoever has a sense of pastoral responsibility cannot apprehend without some worry the menace that the sects represent as well as the shaking of the religious foundations of many Catholics. The Declaration has a duty to answer these problems. The *Proemium* needed to be posted at the beginning."⁶³ Satisfied with this last-minute victory that significantly weakened Murray's main argumentation, Congar recognized that the text was mainly a translation of Murray's ideas. Throughout his diary he had been critical of the American way of approaching the question. Curiously, he was also critical of Murray's role. On January 15, 1965, commenting on a book that he had just finished reading,⁶⁴ Congar noted, "the author gives . . . a leading role to John Courtney Murray that he never had . . . (He shows Fr. Courtney Murray talking about religious freedom at the theological commission with eloquence. It is not true. Each time he mentioned something I knew well, it was not accurate. It must be the same for the rest . . .)"⁶⁵ A few weeks later, he added that "Fr. Murray is less precise than I thought and he does not have a good style. He is dry and short."⁶⁶ Still, Congar recognized the exceptional qualities of Murray. "He has a beautiful faculty to welcome questions, which supposes a true interior humility and an authentic intellectual deontology," he wrote. "He brings a phlegm and courteous distinction to discussions more British, even Oxfordian, than American."⁶⁷ These statements have to be paired with Congar's praise for Murray

61. Cardinal Bea, "L'Eglise et la Liberté Religieuse," *La Documentation Catholique* 1474 (3 Juillet 1966): 1183.

62. Congar, *Mon Journal du Concile* (November 8, 1965), 467.

63. *Ibid.*, Volume II (May 5, 1965), 469.

64. Michael Sérafin, *Le Pèlerin, Les Secrets du Concile* (Paris: Plon, 1964).

65. Congar, *Mon Journal du Concile*, Volume II (January 15, 1965) 302.

66. *Ibid.*, 333.

67. *Ibid.*, 340.

when the two first met in Grottaferrata, Italy, in October 1950. His journal entry speaks very highly of Murray's presentation in which he reported on the state of ecumenism in America. Congar hailed Murray's "remarkable precision, high quality and intellectual rigor."⁶⁸

The final declaration, which prompted much controversy, did not satisfy the requirements of a comprehensive theology of religious freedom. *Dignitatis Humanae* finds its breadth and depth as part of the broader reshaping of the role of the Church in the modern world elucidated at the Council. Congar revealed his vision of religious freedom in this context. His important contribution in the drafting of *Gaudium and Spes*⁶⁹ allowed him to present a homogenous view of religious freedom in a pluralist, divided world. Although the pastoral constitution did not contribute directly to the debate on religious freedom, it did provide a framework within which the Church could be an advocate for human rights broadly and religious freedom specifically.⁷⁰ In the same manner, Murray, though critical of the view taken by the French on the specific issue of religious freedom, admitted that to be fruitful and avoid misunderstanding, the declaration had to be understood in the larger context of the Church's presence in the world. According to Murray, the declaration's "achievement was simply to bring the Church abreast of the developments that have occurred in the secular world."⁷¹ *Dignitatis Humanae*, one of the major texts of the Council according to Pope Paul VI, stands as both a compromise text and a synthesis. This synthesis reflects the evolution of two different schools of thought, both in methodology and hypothesis, yet in both visions the Church triumphs as fully present in the modern world. John Courtney Murray and Yves Congar were "two towering theologians" of the conciliar era, both faithful architects of such a grand vision.

68. Congar, *Journal d'un Théologien*, 176.

69. The Pastoral Constitution on the Church in the Modern World, *Gaudium et Spes*, was promulgated by Pope Paul VI on December 7, 1965.

70. See J. Bryan Hehir, "Dignitatis Humanae in the pontificate of John Paul II," in John T. Ford, ed., *Religious Liberty: Paul VI and Dignitatis Humanae* (Brescia: Istituto Paolo VI, 1995), 169.

71. Cited in Pelotte, *John Courtney Murray: Theologian in Conflict*, 100.